

**SUBSTITUTE FOR
HOUSE BILL NO. 5537**

A bill to amend 1931 PA 328, entitled
"The Michigan penal code,"
(MCL 750.1 to 750.568) by adding section 473a.

THE PEOPLE OF THE STATE OF MICHIGAN ENACT:

1 **Sec. 473a. (1) A person shall not grow, synthesize, sell,**
2 **offer to sell, give, import, or distribute kratom or a synthetic**
3 **variant of kratom. A person that violates this section is guilty of**
4 **a misdemeanor as follows:**

5 **(a) Except as provided in subdivisions (b), (c), and (d), the**
6 **person is guilty of a misdemeanor punishable by imprisonment for**
7 **not more than 90 days, a fine of not more than \$5,000.00, or both.**

8 **(b) Except as provided in subdivisions (c) and (d), if a**
9 **violation of this section occurs after a prior conviction under**



1 this section, the person is guilty of a misdemeanor punishable by
2 imprisonment for not more than 180 days, a fine of not more than
3 \$10,000.00, or both.

4 (c) Except as provided in subdivision (d), if a violation of
5 this section involves selling, offering to sell, giving, or
6 distributing kratom or a synthetic variant of kratom to an
7 individual who is less than 18 years of age, the person is guilty
8 of a misdemeanor punishable by imprisonment for not more than 1
9 year, a fine of not more than \$10,000.00, or both.

10 (d) If a violation of this section involves selling, offering
11 to sell, giving, or distributing kratom or a synthetic variant of
12 kratom to an individual who is less than 18 years of age and it
13 occurs after a prior conviction under subdivision (c), the person
14 is guilty of a misdemeanor punishable by imprisonment for not more
15 than 1 year, a fine of not more than \$20,000.00, or both.

16 (2) This section does not apply to kratom that has been
17 approved by the United States Food and Drug Administration as a
18 drug product, a dietary supplement, or a food additive in
19 conventional food. The exception provided for in this subsection
20 does not apply to a synthetic variant of kratom.

21 (3) As used in this section:

22 (a) "Kratom" means a product containing any part of the plant
23 *Mitragyna speciose*, whether growing or not; the leaves of that
24 plant; any extract or resin from any part of that plant; and every
25 compound, salt, derivative, mixture, or preparation of that plant
26 or its leaves, seeds, or extracts.

27 (b) "Synthetic variant of kratom" means any synthetic form of
28 kratom, including, but not limited to, 7-hydroxymitragynine (7-OH).

29 Enacting section 1. This amendatory act takes effect 90 days



1 after the date it is enacted into law.

